

SENATE No. 2779

The Commonwealth of Massachusetts

—
In the One Hundred and Ninety-Fourth General Court
(2025-2026)
—

SENATE, December 8, 2025.

The committee on Telecommunications, Utilities and Energy to whom was referred the petition (accompanied by bill, Senate, No. 2235) of William N. Brownsberger for legislation relative to towing protections, report the accompanying bill (Senate, No. 2779).

For the committee,
Michael J. Barrett

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An Act relative to towing protections.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 2 of Chapter 159B of the General Laws, as appearing in the 2024
2 Official Edition, is hereby amended by striking the definition of “Commissioners” and inserting
3 in place thereof the following definition:- “the commissioners of the department of public
4 utilities”;

5 and further by striking the definition of “Department” and inserting in place therefore the
6 following definition:- “the department of public utilities”.

7 SECTION 2. Section 6B of said Chapter 159B as so appearing is hereby amended by
8 inserting in the first paragraph after the words “towing away” the following words:- “and
9 storage”;

10 and further by inserting in the first paragraph after the word “authority” the following
11 words:- “or is removed from a private way or upon an improved or enclosed property by a
12 person with lawful control of such way or property pursuant to section one hundred twenty D of
13 chapter two hundred sixty-six”;

14 and further by inserting at the beginning of the second paragraph after the word “The” the
15 following words:- “department shall determine the maximum 24 hours period storage”;

16 and further by striking out in the second paragraph after the word “persons” the words:-
17 “, shall be \$35 per twenty-four hour period thereof,”;

18 and further by inserting at the beginning of the third paragraph after the word
19 “maximum” the following word:- “storage”;

20 and further by striking out at the beginning of the third paragraph the word “herein,” and
21 inserting in place thereof the following words:- “by the department”;

22 and further by inserting at the end of the third paragraph the following words: “No other
23 charges may be assessed for or in conjunction with the towing, transportation, or storage of a
24 vehicle, unless authorized by the department. The person lawfully storing a towed vehicle shall
25 provide an invoice of itemized removal and storage charges to the vehicle owner consistent with
26 any requirements as set forth by the department.”;

27 and further by inserting after the third paragraph the following three paragraphs:-

28 The motor vehicle storage facility shall allow the owner of a vehicle, of which the motor
29 vehicle storage facility is lawfully in possession, to remove any possessions in that vehicle that
30 are not attached to it and shall do so at no charge to the vehicle owner and without requirement
31 of any further payment.

32 The motor vehicle storage facility shall post in a conspicuous place on the premises and
33 visible from the street, the days and hours that a motor vehicle owner may retrieve a vehicle from
34 the storage yard; and shall file said days and hours, including any changes made, with the

department. Any motor vehicle storage facility that maintains a website shall post on its website such days and hours that a motor vehicle owner may retrieve their vehicle from a storage yard. The department may promulgate regulations requiring motor vehicle storage facilities to post in a conspicuous place a notice to customers of other requirements in this chapter.

Any person engaged in the towing away, transportation, and storage of motor vehicles shall accept, within the tow vehicle, being operated, and on the premises of a motor vehicle storage facility, the following methods of payment for vehicle removal and storage charges: credit or debit card payments, or cash payment. Such person shall accept payments by any mobile application or digital platform that facilitates electronic money transfers if they ordinarily accept such method of payment within the tow vehicle being operated or on the premises or the motor vehicle storage facility. No such person may impose a surcharge on a cardholder who elects to use a credit card, debit card, or any electronic money transfer in lieu of payment by cash.

and further by striking out in the fourth paragraph the words “and transportation charges as established by the department and storage charges as established by this section” and inserting in place thereof the following words:- “and transportation and storage charges as established by the department”.

SECTION 3. Section 120D of Chapter 266 of the General Laws, as so appearing, is hereby amended in the first paragraph by striking out the words “posted notice” and inserting in place therefore the following words:- “a posted notice that shall include current removal and storage fees as defined by the department of public utilities”;

and further in the first paragraph by striking the following words:- “unless otherwise specified by such chief of police or police commissioner.”;

and further by inserting in the first paragraph after the words “shall include” the following words:- “a photograph of the vehicle parking or standing on the private way,”;

and further by inserting after the first paragraph the following paragraph:-

Any person engaged in the towing away, transportation, and storage of motor vehicles shall accept, within the tow vehicle, being operated, and on the premises of a motor vehicle storage facility, the following methods of payment for vehicle removal and storage charges: credit or debit card payments, or cash payment. Such person shall accept payments by any mobile application or digital platform that facilitates electronic money transfers if they ordinarily accept such method of payment within the tow vehicle being operated or on the premises or the motor vehicle storage facility. No such person may impose a surcharge on a cardholder who elects to use a credit card, debit card, or any electronic money transfer in lieu of payment by cash.;

and further in the fourth paragraph, subpart (1), by striking out the following words:- “department of telecommunications and energy” and inserting in place thereof the following words:- “department of public utilities”;

and further by inserting at the end of the fifth paragraph the following words:- “The person lawfully storing a towed vehicle shall provide an invoice of itemized removal and storage charges to the vehicle owner consistent with any requirement as set forth by the department of public utilities.”;

77 and further in the sixth paragraph by striking out the following words:- “may, at his
78 discretion if the owner appears to remove said vehicle before the towing is completed, charge
79 said owner one half of the fee usually charged for such towing” and inserting in place therefor
80 the following words:- “shall, if the owner appears to remove said vehicle before the towing is
81 completed, charge said owner the fee usually charged for such towing.”